

HOUSE No. 2093

The Commonwealth of Massachusetts

PRESENTED BY:

Carol A. Doherty

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to collective bargaining rights for legislative employees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carol A. Doherty</i>	<i>3rd Bristol</i>	<i>1/16/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>2/3/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/3/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/3/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>2/3/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>2/3/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/3/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>2/3/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>2/3/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>2/3/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/11/2025</i>

HOUSE No. 2093

By Representative Doherty of Taunton, a petition (accompanied by bill, House, No. 2093) of Carol A. Doherty and others relative to allowing legislative employees to unionize. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to collective bargaining rights for legislative employees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 150E of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting after the word “executive”, in line 10, the
3 following:-, “legislative”.

4 SECTION 2. Said section 1 of said chapter 150E, as so appearing, is hereby amended by
5 inserting after the definition of “Legislative body” the following definitions:-

6 “Legislative employees”, all employees of the general court, including, but not limited to,
7 legislative personal employees, employees of committees, caucuses, legislative information
8 services, the house and senate business offices, the engrossing division, the house and senate
9 clerk’s offices, the house and senate counsel’s offices and the house and senate human resource
10 offices.

“Legislative personal employees”, general court employees whom the house speaker or senate president has approved for employment in the office of a particular senator or representative at the request of said senator or representative.

SECTION 3. Section 3 of said chapter 150E, as so appearing, is hereby amended by inserting after the third paragraph the following 2 paragraphs:-

Appropriate bargaining units in the senate may include all legislative employees; provided however, that: (1) in the case of legislative personal employees, legislative employees within the senate president’s office, the senate minority leader’s office, the office of the chair of the senate ways and means committee, the senate clerk’s office, or senate counsel’s office may be managerial or confidential employees that are excluded from the bargaining unit if said employees are managerial or confidential employees as defined in section 1; and (2) in the case of all other legislative employees, said employees may be excluded from a bargaining unit if said employees are managerial or confidential employees as defined in section 1.

Appropriate bargaining units in the house may include all legislative employees; provided however, that: (1) in the case of legislative personal employees, legislative employees within the house speaker’s office, the house minority leader’s office, the office of the chair of the house ways and means committee, the house clerk’s office, or house counsel’s office may be managerial or confidential employees that are excluded from the bargaining unit if said employees are managerial or confidential employees as defined in section 1; and (2) in the case of all other legislative employees, said employees may be excluded from a bargaining unit if said employees are managerial or confidential employees as defined in section 1.

32 SECTION 4. Section 23 of chapter 268A of the General Laws is hereby amended by
33 striking out the words “; and (iv) establishing additional exclusions for other situations that do
34 not present a genuine risk of a conflict or the appearance of a conflict of interest” and inserting in
35 place thereof the following words:-

36 ; (iv) establishing additional exclusions for other situations that do not present a genuine
37 risk of a conflict or the appearance of a conflict of interest; and (v) establishing specific
38 exemptions, exclusions and procedures for curing particular perceptions of a conflict of interest
39 as they may apply to exclusive representatives under Chapter 150E.